Submission to the Joint Standing Committee on Electoral Matters 8 September 2025

This Submission offers comments and positive suggestions, based on my perspectives:

- among a 53-year mainly Engineering career in industry and Government Departments, I worked periods for 6 MPs (3 Canberra, 3 NSW) including a Minister and a Senator
- I have Scrutineered at all elections from 1986, and I excelled in maths at University.
- Therefore I am a good Psephologist, and now that Antony Green & Malcolm McKerras have retired, and that Dr Amy McGrath has died (having given me her papers), I request that I speak at a public hearing of JSCEM to provide information and answer questions.

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1.1 OVERVIEW OF THIS SUBMISSION

I am concerned that :-

- the excessive numbers of Prepoll votes weaken our democracy (section 2), and that actions should be taken to reduce the numbers of Prepoll votes
- the AEC's tally room website does not display the numbers of Prepoll votes
- the AEC's website should display the numbers of Multiple Votes in each electorate, & especially within one month of an election for electorates that are close
  (n.b. displaying the numbers of Prepolls & Multiple Votes would assist public debates)
- the long time for counting of ballot papers could be reduced by abandoning the folding of ballot papers; this would reduce counting time and also reduce the cost
- that federal elections should be held on a fixed date, thus making easier (and less costly) the AEC's tasks in hall hiring, obtaining of staff and training them
- huge rural electorates make it difficult for voters to meet MPs. A more inclusive and fairer democracy would arise if the 6 largest electorates could be less huge in area, to have the same number of voters as in Tasmania, resulting in an extra 3 rural electorates
- informal votes could be reduced by several suggestions I make in sections 5, 7.1 & 7.3
- the strange deficiency needs to be fixed in the Commonwealth Electoral Act (CEAct) section 361 that makes one aspect in the Court of Disputed Returns to be unfair
- good recommendations of previous JSCEMs should not be forgotten,
  * for example Voter ID was recommended by the JSCEMs after the 2013, 2016 and 2019 elections, but has not yet been done; this would require amendments to the CEAct
  * for example Electronic Certified Lists have only partially been introduced, as was recommended by the JSCEMs after the 2013, 2016 & 2019 elections. The AEC could do this without requiring law change, and it would reduce the numbers of Multiple Votes.

From Lex Stewart (on Electoral Roll as Alexander Cornell Stewart, [redacted]

1.2 MY RECOMMENDATIONS

1. That the Prepoll period be shortened from 12 days to 5 days as a means to reduce the numbers of spurious and unnecessary prepoll votes (section 3.1).
2. That the AEC enforce the law properly in prepolling by challenging each person to choose which of the grounds in the law for early voting does apply (as per appendix 1).
3. That the AEC do an education program warning of these future challenges about the grounds for early voting, so as to cause as much voting as possible to occur on the actual election day.
4. That the AEC should publish the statistics on the numbers of votes on polling day, and the numbers that are cast early at prepoll voting centres (PPVC)s.
5. That ECLs (Electronic Certified Lists) be used at every polling booth; ECLs are already used in most Prepoll booths. The AEC can easily do this – it does not require any legislative amendment, only adequate budget allocation, and this measure would reduce multiple voting.
6. That suitable size cardboard boxes be provided so that unfolded ballot papers could be placed face-down into the boxes - this would mean much more rapid counting of ballot papers by AEC officers after 6pm on election night, with savings in time and cost.
7. That federal elections be held on a fixed date (every 3 years, or perhaps 4).
   This would help to reduce the numbers of informal votes by allowing the AEC to better train the thousands of officers who work in polling booths and mobile locations (see my comment in section 7.1)
8. That the 6 electorates with an area greater than 400,000 square kilometres (except for Lingiari) have the same number of voters as in the electorates of Tasmania (section 6).
9. That pens not pencils be provided at voting centres to make altering of ballot papers harder (section 7.2 and appendix 5)
10. That the AEC investigate my proposal that at each ballot paper issuing point the AEC officer can, if the voter requests it, print a ballot paper with numbers in each box exactly as per one of the How-to-Vote leaflets that has been lodged with the AEC (section 7.3).
11. That the High Court be allowed to inquire into the correctness of the Electoral Rolls, instead of the absurd section 361 of the CEAct which currently forbids any scrutiny by anybody. (section 8)
12. I recommend that the good Recommendations by previous JSCEMs in regards to Voter ID and Electronic Certified Lists should be again made by this Committee.

2 ALLOWING TOO MANY PRE-POLL VOTES IS NOT GOOD

Section 3.1 shows how the percentages of Prepoll votes are getting worse in each election. I have eight reasons to think that excessively-large numbers of Prepoll votes are not good:

2.1 The AEC did not enforce the law.
Many of the prepoll votes were contrary to the law, the Commonwealth Electoral Act (CEAct), which the AEC did not enforce properly, as I explain below in section 2.5.

2.2 Trivialising the casting of a vote.
Allowing persons to vote early as a matter of convenience, without requiring them to bother to state the explicit grounds for wanting to do a prepoll vote, trivialises the privilege of the right to vote, which previous generations fought for.

2.3 Lack of adequate information for voters to decide upon.
Early voters are not as adequately informed as they could have become if they had been forced to wait till election day, because they have, before voting, missed out on hearing new

policy announcements, or even scandals, which might have altered the way they vote, and the JSCEM quote in section 2.7 rightly points out that we want voters to be well-informed.

2.4 Waste of resources

Allowing persons to vote early as a matter of convenience also makes it much more difficult for all political parties, especially Minor Parties and independents (with less workers and resources than the Major Parties) to adequately distribute information about their candidates, policies and recommended preferences in the limited time, only 10 days, available between the declaration of nominations (midday on a Friday) and the start of Prepoll voting on a Monday 12 days before the election.

This means that in many cases leaflets, ads etc are wastefully shown by candidates or Parties to people who have already voted, and therefore for whom such information is irrelevant.

2.5 Questions asked by AEC officers were inadequate and misleading.

Obviously there are legitimate cases where persons are unable to vote on polling day for genuine reasons, and the law allows several options to cope with such inability, including applying for a postal vote, doing an absent vote, or doing a legitimate Prepoll vote.

The AEC was derelict in its duty to enforce the law, being negligent to not restrict excessive Prepoll voting to only those persons who do have a valid reason as required by the CEAct, sections 183 and 200A, and schedule 2.

AEC officers should have asked, but did not ask, prospective voters which of the valid reasons, as listed on the AEC leaflet (appendix 1), applies to them.

I scrutineered at several PPVCs (prepoll voting centres) and observed that AEC officers were asking prospective voters questions (which had obviously been framed by the AEC):
"*Are you entitled to vote early?"* or *"Are you eligible to vote early?*"
But, they are meaningless questions, because do we seriously expect a prospective voter who has made the effort to travel to a PPVC to answer, "*No. I came here, wasting my time, even though I know that I am not entitled to vote prepoll*."
(n.b. at a PPVC I did hear one prospective voter answer the question "No", but then the AEC official said something which I could not hear, and anyway gave him a ballot paper!)

Such questions are as silly as if a Highway Patrol Police Officer, having detained a motorist for speeding would ask, "Are you entitled to break the law?"

2.6 Wasteage by AEC due to non-use of AEC's printed leaflets.

During my scrutineering at four PPVCs (PrePoll Voting Centres) I observed piles of the AEC's leaflet "**Are you entitled to vote early?**" (appendix 1) which gives good information, BUT, while it was available on tables, it was unfortunately not used!
During my scrutineering at PPVCs, I never saw any effort by AEC officers to give the leaflet to any of the many hundreds of prospective voters, some waiting in queues for a long time.

2.7 Early voting means less-informed voters, and that weakens our democracy.

The Foreword of the recent (5 February 2025) JSCEM report "**From Classroom to Community**" stated: (my underlining emphasis added)

> "The strength and stability of Australia's democracy depends on the capacity of our citizens to confidently engage with politics and cast an informed vote. Australia's system of compulsory voting means that all Australians need to be informed to participate in our democracy and elections.
> This is particularly important at a time when democracies around the world, including Australia, are facing rising disengagement, distrust … in an

> increasingly complex information environment.
> Effective civics education in schooling is vital to give young people the tools to be informed and responsible citizens ..."

By permitting far too many people to vote early, the AEC is worsening the feelings of dis-engagement that are evidenced by early voters, who obviously were not able to become informed about major policy announcements, scandals or data that would have, or could have, emerged during the 12 days of prepoll voting before the 3 May election.

These feelings of disengagement may explain that the Voter Turnout for the 2022 election at 89.82% for the House of Reps was the LOWEST IN A CENTURY, and for the 2025 election it was only a little bit better at 90.7%. but this is still far lower than the 93 to 95% voter turnout that prevailed for 90 years from the introduction of compulsory voting in 1925 up to and including the election of the Abbott government in 2013.
https://www.aec.gov.au/election/fe25/participation-rates.htm

2.8 Early voting provides extended opportunities for vote frauds by providing time for persons to access Ballot Papers stored overnight and to amend the pencil numbers.

This did happen in the 2022 federal election.
My scrutineering of the 2,245 informal votes among the 45,557 prepoll votes in the Cowper electorate found that about 320 votes for the National MP had been rendered informal by the alteration of pencil numbers on the ballot papers (see appendix 5). This happened at only the Coffs Harbour PPVC not at the other three PPVCs in Cowper.
I made a Submission (number 376) to the JSCEM in 2022 complaining of the alteration of pencil numbers, but the JSCEM report ignored the two key aspects

(a) security of storage overnight of ballot papers, and
(b) writing on Ballot Papers should be in pen not pencil.

In light of my 8 reasons, the AEC needs to enforce the law properly, and do an education program to require as much voting as possible to occur on the actual election day.

3 DISPLAY BETTER INFORMATION on the AEC WEBSITE

3.1 PREPOLL NUMBERS

The AEC's election tally room does not give statistics on the numbers of Prepoll votes.
Its data groups together as "ordinary votes" the votes cast on election day together with the votes cast before election day in prepolling.

https://results.aec.gov.au/31496/Website/HouseVoteTypeBreakdownByState-31496.htm shows:

Ordinary 79.94%, Absent 3.29%, Provisional 0.17%, Declaration 3.40%, Postal 13.21%.

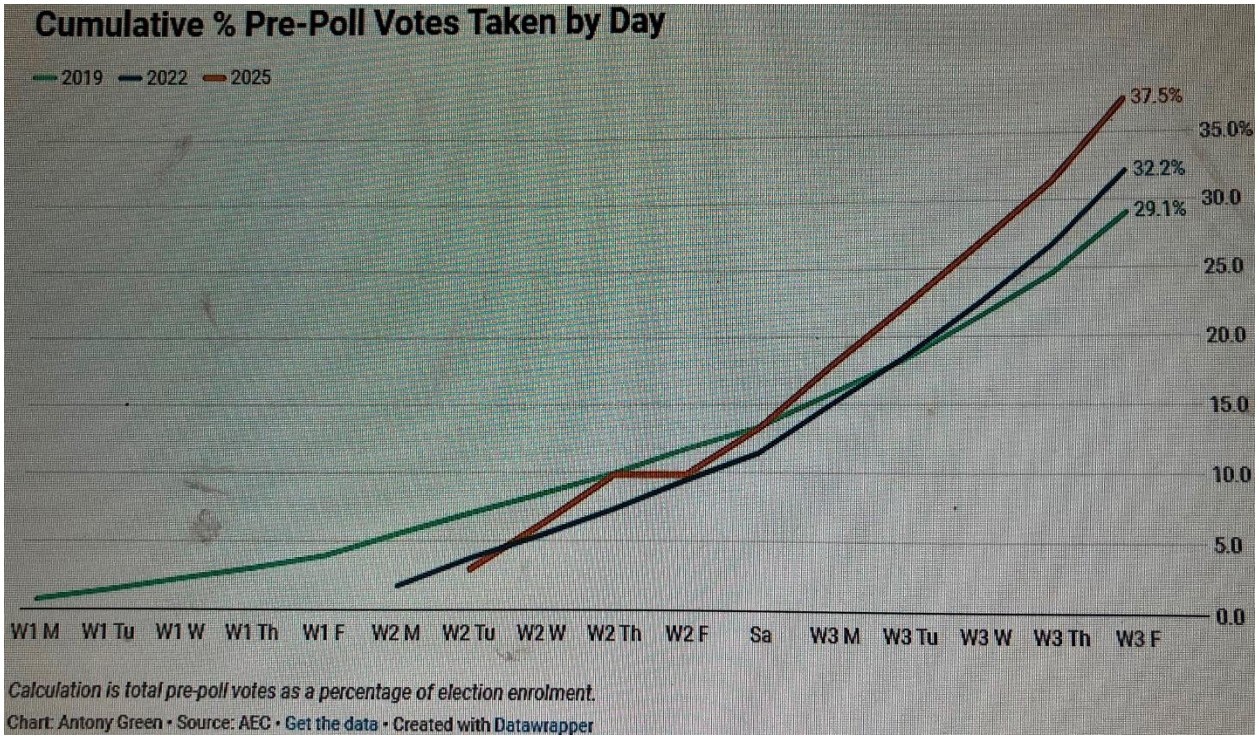
In my view, use of the word "ordinary" to describe both votes on election day plus votes during the previous 12 days is misleading.
I recommend that the AEC should publish the statistics on the numbers of votes on polling day, and the numbers that are cast early at PPVCs. .

In order for me to gain such information, I have researched Psephologist Antony Green at https://antonygreen.com.au/fed2025-tracking-the-early-vote/ and he gave information:

> "As of polling day a total of 6,778,467 pre-poll votes had been taken representing 37.5% of enrolment ... up from 32.2% in 2022, and 29.1% in 2019. ... six electorates had prepoll rates above 50%."

I comment that the Prepoll percentage of votes becomes worse at 41.3% when one considers that the voter turnout was only 90.7% for the House of Reps.

Antony Green's website shows that the numbers of prepoll votes are getting worse:



I recommend that the Prepoll period be shortened from 12 days to 5 days as one means to reduce the numbers of prepoll votes.

3.2 MULTIPLE VOTES

None of the AEC's websites has ever displayed the numbers of apparent Multiple Votes, and I recommend that this be done.
The AEC sends the hard copy Electoral Rolls from many polling booths to an external contractor for scanning to determine two things
(1) persons who did not vote, so that a letter can be sent asking them to pay the penalty, and
(2) persons who appear to have voted more than once, and the AEC then sends a letter asking them to explain. But NOBODY HAS EVER BEEN PROSECUTED for multiple voting, which is easy to do in the absence of Voter ID.

Appendix 2 shows the information that the AEC gave to me in response to my request for information on apparent Multiple Voting in the 2016 federal election.

Contrary to what I and many journalists have said for years, these data in appendix 2 are not Multiple Votes, but are LETTERS SENT OUT to persons that seem to have voted more than once - 18,343 letters sent means that the number of Multiple Votes was at LEAST 36,686 !

The AEC admitted in a newspaper article that 18,770 multiple votes occurred at the 2013 election, but no prosecutions were done. Nothing (e.g requiring Voter ID) has yet been done to fix this huge problem.

Multiple voting could be eliminated by introducing " Electronic Certified Lists" (ECLs), with polling booths linked electronically to a central Master Electoral Roll, and this has been a recommendation of the JSCEM's after the 2013, 2016 and 2019 elections. ECLs were used at a few Prepoll voting centres before the 2022 and 2025 elections.

I recommend that ECLs be used at every polling booth, and the AEC can easily do this – it does not require any legislative amendment, only adequate budget allocation of funds.
(Note that the costs of elections could be reduced by being on a fixed date)

4 ABANDON THE FOLDING OF BALLOT PAPERS

This would save time and money.

The aim of folding ballot papers is for confidentiality, which could be obtained equally as well if the ballot paper would be carried face down, and put face down into a carboard box.

At the moment, it requires a great deal of labour (which requires hours of time, and therefore costs taxpayers a lot of money in wages) for AEC officers to unfold all ballot papers before they can inspect them to count them.

It has been customary to group House of Reps ballot papers into bundles of 50 surrounded by rubber bands, but I recommend that ballot papers could be stacked face down into suitable size cardboard boxes.
I have observed this - e.g. at Epping West polling booth in the 2007 federal election during the counting after 6pm all of the Senate ballot papers were unfolded and put flat into large cardboard boxes of the correct size.

I recommend that suitable size cardboard boxes be provided so that unfolded House of Reps ballot papers could be placed face-down into the boxes. Then this would mean

(a) After 6pm on election night, counting by AEC officers could occur more rapidly
(b) rapid optical scanning of such ballot papers neatly stacked in boxes becomes possible, and this would mean a more rapid promulgation of the voting numbers, thus addressing the criticism in this Editorial of the Daily Telegraph that India counts its 640 million votes much more rapidly than we in Australia count our circa 15 million.

Slowly moves the hands of the AEC

D Tele Tues 6 May 2025

India held a national election last year. More than 640 million citizens cast votes.

All of those votes were counted in a matter of hours.

In Australia, however, multiple seats still await final counting even days after Saturday's ballot.

In the seat of Melbourne, for example, only 70,918 eligible votes were cast. But by late Monday, Australia still had no idea if Greens sitting member Adam Bandt had won re-election.

Other seats are also afflicted. Come on, AEC. Get a wriggle on.

5 ABANDON VARIABLE ELECTION DATES

I note that the JSCEM included as one Term of Reference in its media release:

> "the composition of the parliament as a whole; including the length of the parliamentary term, the potential for fixed terms, and the number of elected representatives relative to the growth in population and the electorate."

Having the federal elections on a variable date at the choice of the Prime Minister adds to the complexity and cost of federal elections.

I became familiar with this extra cost and complexity in the September 2013 federal election, where the date was changed by Prime Minister Kevin Rudd when he took over from PM Gillard. I was a candidate and was dialoguing with AEC officials. They told me that they were frustrated by having to find at short notice another hall for one polling booth which they had booked <u>and already paid for</u> and which was unavailable on the new date; therefore they needed to frantically search around for a new location for that booth, which cost extra.

I recommend that Australian federal elections be held on a fixed date every 3 years; perhaps both sides of politics could agree on a 3.5 or 4-year period.
USA has 4 years, UK has 5 years. Most Australian States already have elections on a fixed date, e.g. NSW has State elections every four years on the last Saturday in March.

6 MAKE HUGE RURAL ELECTORATES TO BE NOT QUITE SO LARGE

One of the Terms of Reference for this JSCEM is :

> "the composition of the parliament as a whole; including … the number of elected representatives relative to the growth in population and the electorate."

While electorates of equal numbers of persons are the ideal aim from a human rights point of view, I consider that there are circumstances where a fairer democracy for consultation by the people with their governments would arise if huge rural electorates would be slightly smaller than they are at the moment, because of the long distances required in some rural electorates for a voter to travel to meet their MP, and similarly the long distances required for the MP to travel to visit towns, farms, people and institutions across the electorate.

I first became aware of the way that large distances in rural areas limit the practicalities of communication between an MP and voters when I was a candidate in 2013 in Riverina.
At that time it was, like Farrer beside it along the river boundary with Victoria, a very long and very skinny electorate that stretched from almost Broken Hill to almost Mount Kosciuszko. Michael McCormack was (and still is) the MP.
He and I initially clashed at some public meetings due to my cogent criticisms of the National Party's performance, but we soon became friendly after I pointed out that I was not attacking him <u>personally</u>, only his <u>Party</u>, which was in any case better than the Greens or the ALP, whose Party performances I also criticised.

One day he sighed deeply in telling me that he was weary, because he had needed to have driven for six hours to attend a function in a remote part of his electorate. Obviously during most of that six hours he was not available on the mobile phone, due to the paucity of rural coverage, and thus it was lost time for him for the sake of attendance at the remote location.
When I, as a candidate, went to talk to all the Councillors of Hillston Shire, they told me that they had not seen their MP, Michael McCormack, in their Shire for many years.

The largest electorate in terms of area is Durack (1.41 million square kilometres) comprising about half of the area of Western Australia, the largest state of Australia, and the smallest electorate is Wentworth in inner Sydney (31 square kilometres), where no voter is more than 6km from their MP's office.
The median size of electorate is 312 sq km, and Canberra happens to be this exact size.

In order to demonstrate the long travel distances in rural electorates, I have in the table below calculated the <u>notional</u> radius of the electorate assuming it is a circle (which of course it is not), but this is to give an idea of the scale of the problem.

There are many towns at greater distances from the MP's office than these 'notional' numbers shown in the righthand column of the table. I researched only a few examples to give some idea of the perspectives,

e.g. in Kennedy the distance from Charters Towers to the MP's Mt Isa office is 713km;
e.g. in Maranoa the distance from Birdsville to the MP's Roma office is 1,105km;
e.g. the highest distance that I could find was in O'Connor electorate from Warburton to the MP's Kalgoorlie office at 2,676km, going around the desert.

Table showing the dozen largest electorates by area :

Electorate	State	Number of voters	Size, square kms	Held by	Notional travel distance for some voters (max)
Durack	WA	119,992	1,410,947	Lib	670 km
Lingiari	N Territory	76,836	1,348,073	ALP	655 km
O'Connor	WA	122,082	1,093,790	Lib	590 km (max 2,676km)
Grey	SA	128,719	908,595	Lib	530 km (max 994km)
Maranoa	Queensland	115,570	729,897	LNP	482 km (max 1,105km)
Kennedy	Queensland	123,724	567,377	KAP	425 km (max 713km)
Parkes	NSW	130,913	406,755	Nat	360 km
Leichhardt	Queensland	122,787	148,559	ALP	217 km
Flynn	Queensland	117,940	132,884	LNP	206 km
Farrer	NSW	123,827	126,563	Lib	201 km
Capricornia	Queensland	115,715	90,903	LNP	170 km
Mallee	Vic	121,662	83,412	Nat	163 km
Canberra	A.C.T.		median 312		10km
Wentworth	NSW	31	smallest 31	Indep	3km (max 6km)

There is quite a large gap between the area of Parkes and the area of Leichhardt, and this gap might be a logical break point for determining which large electorates could be made smaller.

As shown in the table below, **<u>the number of voters in each electorate now varies a great deal anyway</u>** from the unattainable ideal of exactly equal numbers per electorate.

Table of voters per electorate:

The theoretical Quota for the average electorate across Australia	128,000
The A.C.T's three electorates on average contain	107,450
Tasmania's five electorates on average contain	82,336
The Northern Territory's two electorates average	77,779

In order to determine the number of MPs in the House of Representatives, the Electoral Commissioner first ascertains a Quota by dividing the voting age population of the Commonwealth (excluding territorial populations) by twice the number of Senators for the States, which is currently 72. Then the number of MPs to be chosen for each State or Territory (other than the Norfolk Island territory, and the Jervis Bay Territory) is then determined by dividing the number of people of the State or Territory by the quota.

For the 2025 federal election the Electoral Roll contained 18.092 million names, but it included only 98.1% of the population of voting age, which was 18.4685 million people. Therefore the Quota, being the ideal number of voters in each electorate, was ~128,000.

However large variations from this theoretical ideal already occur for various reasons:

- The Constitution requires a minimum of five MPs for each of the original States, and so Tasmania's 411,576 electors get split into five electorates of average 82,336 voters
- The A.C.T. with 322,356 electors has been determined to have 3 electorates
- Recently the Northern Territory with 155,559 Electors was decided to change from one to two electorates, due to the low population density and large distances involved.

And of course these are some of the reasons that I recommend that large rural electorates like Durack, O,Connor and Kennedy should be smaller in area, and therefore would have a number of electors smaller than the quota of 128,000 that applies across most of the country.

I recommend that the 6 electorates with an area greater than 400,000 sq kilometres (except for Lingiari) be allocated the same number of voters as in the electorates of Tasmania.
At the moment Lingiari, due to the special circumstances recently argued for the NT, already contains approximately the same number of electors as the average for Tasmania.

These 6 electorates at the moment contain 741,000 voters, and therefore if each would have an average of 82,336 voters, then my calculation is that there would be 9 electorates instead of these 6, i.e. an extra 3 electorates.
(alternatively, if the 10 largest electorates having an area above 100,000 square kilometres would have the same numbers as Tasmania, then I calculate an extra 3.5 electorates)

This idea is just a draft proposal, and the AEC, if instructed to do so, could work out the details, as it already does a good job of the complexities of redistributions of electoral boundaries, due to population growths, and redistributions every 7 years anyway.

It would be cynical and incorrect to call this recommendation a 'gerrymander' to pander to the National Party. It is a commonsense recognition of the tyranny of distance that is so typical of much of inland Australia, and it would be designed to be more inclusive of the diversity of remote rural voters than is now the case.

On my calculation this would give Australia an extra 3 electorates in rural areas, and this would help to counter-balance the excessively-urban bias in the policies and interests of the two Major Parties. It would give a fairer democracy with a wider range of opinions.

7 REDUCE THE NUMBERS of INFORMAL VOTES

7.1 The AEC has often stated that it desires that the number of informal votes be as small as possible, and it runs education programs to this end.
The percentages of informal votes in the House of Reps have been as follows

Federal election year	2013	2016	2019	2022	2025
House of Reps informal votes	5.9%	5.05%	5.54%	5.19%	5.6%

Sometimes the AEC procedures and staff advices have caused confusion – refer to the two stories in appendix 4.1 and 4.2 showing three locations with an informal rate of about 50%.
While these matters are of concern, they are not deliberate or serious, because with so many staff at so many polling locations, some degree of problems can be expected.
These sorts of problems can be avoided in future by better training of AEC officers (which would be improved by my recommendation 7, making the elections on a fixed date), and/ or by the idea that I suggest below in section 7.3.

7.2 Provide pens not pencils for voting.

I made a Submission (number 376) to the JSCEM reviewing the 2022 election, because during Scrutineering of the many thousands of prepoll ballot papers I did a survey of the various types of informal votes, and I therefore came to see many ballot papers from the Coffs Harbour Prepoll Voting Centre (PPVC) that were informal due to having two "1"s.
The How-to-Vote leaflet for Pat Conaghan, the incumbent National Party MP, (see appendix 5.1) gave him a number 1, then numbers 2,3,4,5,6 to other candidates, and then the number 7 at the bottom of the ballot paper for the Greens' candidate.

I saw dozens of ballot papers that had been filled in exactly according to that How to Vote leaflet, except that the pencil 7 had been changed to a 1 (as shown in appendix 5.2).
Therefore the presence of two 1s made the vote informal.
This pattern did not happen in the other three PPVCs, only in the Coffs Harbour PPVC.

7.3 Printing of ballot papers could reduce the numbers of informal votes.

I noted at the 2025 election that a new procedure was implemented at the five polling booths at which I did scrutineering during the day, and at the four PPVCs I scrutineered at.
I saw that House of Reps ballot papers with blank boxes were printed individually for each voter that came to a table to ask for a ballot paper. This has recently become possible because printers have become so cheap.
Previously it has been a huge exercise in logistics by the AEC to print well over 128,000 ballot papers for each of the 150 electorates and to distribute these (with security) to every polling booth in the electorate, and to many other places so as to allow absentee votes.

If the AEC would have as part of its database all of the How-to-Vote (HTV) leaflets of every candidate, then voters could be asked the question, "*Do you wish to vote exactly as recommended by any particular candidate or Party*?".

This is a commonsense question, and is not an infringement of a person's privacy, because if the person answers "no", then, as currently, a blank ballot paper would be printed.

If the person answers, "yes", then the AEC official, preferably with a scrutineer or a second person present, could ask, "*Which candidate or party do you want to vote for*?"

I have over the years seen and heard some older people who have said, "*I have voted Labor all of my life*" or *"I have always voted National Party*", so they would answer the question 'yes', in which case the AEC official could access the AEC database and print out a Ballot Paper with the boxes already filled in with all the numbers as per the relevant HTV leaflet.

In this way, persons in hospitals or aged care homes who have declining abilities to write clearly or to see so as to write clearly, could still retain the ability to vote, rather than mess up writing on their ballot paper, which then gets judged as informal.

This new suggested method of printing Ballot Papers with numbers on them, could improve the ability of disabled voters to participate - and in this way the number of informal votes, such as those shown in appendix 4.1 and 4.2, can be greatly reduced.

I recommend that the AEC investigate this proposal that at each ballot paper issuing-point that the AEC officer can, if the voter requests it, print a ballot paper with numbers in each box exactly as per one of the How-to-Vote leaflets that has been lodged with the AEC.

8 ALLOW BETTER SCRUTINY of ELECTORAL ROLLS

"COMMONWEALTH ELECTORAL ACT 1918 - SECT 361

Inquiries by Court

(1) The Court shall inquire whether or not the petition is duly signed, and so far as Rolls and voting are concerned may inquire into the identity of persons, and whether their votes were improperly admitted or rejected, assuming the Roll to be correct, but the Court shall not inquire into the correctness of any Roll." (my emphasis added).

This is an absurd section of the law, that nobody, not even the highest court in the land, can inquire into the correctness of Electoral Rolls, which several reports of the Australian National Audit Office over the years 2002 to 2015 have shown to have many thousands of incorrect enrolments, some of them being deliberately inserted as false.
And the AEC itself has admitted on numerous occasions, including to JSCEMs, that Electoral Rolls do contain many thousands of incorrect enrolments.
I have evidence of 8 cases over the last 30 years in which false enrolments have been lodged deliberately onto an Electoral Roll, and I can provide evidence 'beyond reasonable doubt'.
I recommend that the High Court be allowed to inquire into the Electoral Rolls.

9 DO NOT FORGET the RECOMMENDATIONS of PREVIOUS JSECMs

The JSCEM set up to investigate the 2016 federal election recommended in its report dated 5 December 2018 (see extracts below) :

- Recommendation 12 that Voter ID be introduced (section 3.141 below), and
- Recommendation 25 that ECLs (Electronic Certified Lists) be used at all polling places.

The federal JSCEM also made these recommendations in its 2013 and 2019 reports, but nothing was done by the then Coalition governments.
And these Recommendations were also made by the NSW State JSCEM in 2016.

Voter ID was once introduced in one State, but it was subsequently deleted.
The amendments to sections 3, 107 and 112 of the Queensland Electoral Act in year 2014 were good in requiring proof of identity for ordinary and prepoll voting, but these identity provisions should have included postal voting, which is where a lot of frauds can occur. However, the first thing that the incoming ALP State government did in coming to power in early 2015 was not re schools, hospitals, police etc, but was to repeal the voter ID law.

ECLs linked to a central database (plus voter ID) was done in South Africa 25 years ago, and the computer engineer who did the project worked in North Sydney. I met him for lunch in 2015 and told him the AEC's allegations to the JSCEM about the huge cost and time required to implement this system, and he laughed, because his estimates (having actually done the work) were far less than a quarter of what the AEC had said.

I recommend that these Recommendations should be again made by this Committee.

3.141 The Committee recommends that the *Commonwealth Electoral Act 1918* and the *Referendum (Machinery Provisions) Act 1984* be amended to require that:

- voters must present a form of acceptable identification to be issued with an ordinary pre-poll or election day vote. Authorised identification must be suitably broad so as to not actively prevent electors from casting an ordinary ballot. Examples of acceptable identification would include:
  - photographic ID such as a drivers licence, passport, or proof of age card;
  - government-issued identification card, such as a Medicare card, senior's card of concession card;
  - proof of address, such as an account from a utilities provider, taxation notice of assessment or Australian Electoral Commission issued voter registration letter; or
  - alternatively, a 'voter ID' card be introduced and issued to all voters.
- where voters cannot provide acceptable identification they must be issued with a declaration vote.

3.142 The Committee further recommends that, in order to make this change as easy as possible, the national rollout of Electronic Certified Lists be fully funded (see Recommendation 25).

Recommendation 25

5.56 The Committee recommends that a national rollout of Electronic Certified Lists and/or 'ECL Lite' be fully funded and implemented prior to the 2019 federal election.

File 5003 Submission to JSCEM from Lex 2025 ver3.docx

APPENDIX 1 - the AEC leaflet

AEC
Australian Electoral Commission

Are you entitled **to vote early?**

You can vote early if on polling day you will be unable to attend a polling place because you:

- are outside the electorate where you are enrolled to vote
- are more than 8km from a polling place
- are travelling
- can't leave your workplace to vote
- are seriously ill, infirm, have recently given birth or are expected shortly to do so (or if you are caring for someone who is)
- are a person with disability (or if you are caring for someone who is)
- are a patient in hospital
- have religious beliefs that prevent you from attending a polling place
- are in prison serving a sentence of less than three years or otherwise detained
- are a silent elector
- have a reasonable fear for your safety.

All eligible Australian citizens aged 18 years and older are required by law to enrol and vote. This fact sheet is not a legal document but a guide only to assist you to assess your entitlement to vote early under the *Commonwealth Electoral Act 1918* (Electoral Act) and the *Referendum (Machinery Provisions) Act 1984* (Referendum Act). If you wish to see full details of the legal requirements as set out in the Electoral Act and the Referendum Act, please see the poster displayed at this polling place or ask a polling official for a copy. (EF050)

aec.gov.au 13 23 26

APPENDIX 2 - Statistics from the AEC about possible Multiple Voting by Electorate

2016 Federal Election

This document was sent by the AEC to Lex Stewart due to his request.

2016 Federal Election Multi-marks (2 or more marks) by Division

ACT		**264**
	CANBERRA	132
	FENNER	132
NSW		**6,760**
	BANKS	157
	BARTON	184
	BENNELONG	153
	BEROWRA	138
	BLAXLAND	182
	BRADFIELD	163
	CALARE	107
	CHIFLEY	222
	COOK	130
	COWPER	112
	CUNNINGHAM	124
	DOBELL	110
	EDEN-MONARO	133
	FARRER	130
	FOWLER	218
	GILMORE	134
	GRAYNDLER	153
	GREENWAY	163
	HUGHES	145
	HUME	93
	HUNTER	127
	KINGSFORD SMITH	188
	LINDSAY	157
	LYNE	85
	MACARTHUR	188
	MACKELLAR	108
	MCMAHON	211
	MACQUARIE	125
	MITCHELL	125
	NEWCASTLE	97
	NEW ENGLAND	100
	NORTH SYDNEY	122
	PAGE	130
	PARKES	116
	PARRAMATTA	174
	PATERSON	118
	REID	172
	RICHMOND	115
	RIVERINA	96
	ROBERTSON	117
	SHORTLAND	123
	SYDNEY	145
	WARRINGAH	123
	WATSON	257
	WENTWORTH	154
	WERRIWA	209
	WHITLAM (New)	127
NT		**178**
	LINGIARI	77
	SOLOMON	101
QLD		**2,792**
	BLAIR	96
	BONNER	101
	BOWMAN	79
	BRISBANE	98
	CAPRICORNIA	83
	DAWSON	81
	DICKSON	74
	FADDEN	82
	FAIRFAX	80
	FISHER	72
	FLYNN	102
	FORDE	84
	GRIFFITH	118
	GROOM	87
	HERBERT	50
	HINKLER	59
	KENNEDY	62
	LEICHHARDT	104
	LILLEY	109
	LONGMAN	93
	MCPHERSON	89
	MARANOA	75
	MONCRIEFF	103
	MORETON	124
	OXLEY	135
	PETRIE	115
	RANKIN	157
	RYAN	122
	WIDE BAY	79
	WRIGHT	79
SA		**1,414**
	ADELAIDE	162
	BARKER	88
	BOOTHBY	128
	GREY	79
	HINDMARSH	153
	KINGSTON	119
	MAKIN	132
	MAYO	104
	PORT ADELAIDE	173
	STURT	135
	WAKEFIELD	141
TAS		**359**
	BASS	66
	BRADDON	68
	DENISON	85
	FRANKLIN	70
	LYONS	70
VIC		**4,800**
	ASTON	114
	BALLARAT	89
	BATMAN	152
	BENDIGO	97
	BRUCE	184
	CALWELL	213
	CASEY	104
	CHISHOLM	142
	CORANGAMITE	83
	CORIO	119
	DEAKIN	135
	DUNKLEY	124
	FLINDERS	111
	GELLIBRAND	151
	GIPPSLAND	64
	GOLDSTEIN	100
	GORTON	168
	HIGGINS	123
	HOLT	190
	HOTHAM	156
	INDI	77
	ISAACS	145
	JAGAJAGA	101
	KOOYONG	138
	LALOR	194
	LA TROBE	98
	MCEWEN	140
	MCMILLAN	86
	MALLEE	55
	MARIBYRNONG	191
	MELBOURNE	143
	MELBOURNE PORTS	141
	MENZIES	142
	MURRAY	111
	SCULLIN	201
	WANNON	68
	WILLS	150
WA		**1,776**
	BRAND	114
	BURT	152
	CANNING	99
	COWAN	137
	CURTIN	96
	DURACK	93
	FORREST	65
	FREMANTLE	118
	HASLUCK	94
	MOORE	95
	O'CONNOR	114
	PEARCE	104
	PERTH	100
	STIRLING	139
	SWAN	132
	TANGNEY	124
Grand Total		**18,343**

APPENDIX 3 - all 150 electorates, listed in declining order of Areas

Durack	1,410,947	Bendigo	6,178	Macarthur	307	Moore	102
Lingiari	1,348,073	Groom	5,586	Clark	292	Moncrieff	100
O'Connor	1,093,790	Ballarat	5,323	Hasluck	258	Deakin	98
Grey	908,595	Macquarie	4,387	Holt	252	Fraser	98
Maranoa	729,897	Hinkler	3,818	Fenner, ACT+	238	Sturt	97
Kennedy	567,377	Canning	3,608	McPherson	229	Tangney	97
Parkes	406,755	Whitlam	2,996	Burt	222	Curtin	92
Leichhardt	148,559	Hume	2,674	Mackellar	222	Greenway	90
Flynn	132,824	Casey	2,624	Solomon, NT	211	Adelaide	86
Farrer	126,563	McEwen	2,288	Gorton	207	Hotham	81
Capricornia	90,903	Richmond	2,133	Shortland	204	Mitchell	79
Mallee	83,412	Hawke	1,986	Calwell	191	Chisholm	73
New England	75,237	Bean	1,913	Fremantle	191	Maribyrnong	70
Barker	65,206	La Trobe	1,303	Lalor	180	Perth	69
Riverina	52,410	Longman	1,237	McMahon	179	Cook	67
Lyons	35,721	Corio	1,216	Scullin	174	Parramatta	66
Wannon	34,270	Fisher	1,198	Kingston	165	Fowler	62
Gippsland	33,131	Fairfax	1,004	Makin	162	Banks	61
Calare	32,648	Paterson	948	Newcastle	159	Cooper	61
Eden-Monaro	31,913	Herbert	941	Oxley, Q	159	Kingsford-Smith	61
Indi	29,188	Robertson	939	Isaacs	158	Bennelong	60
Braddon	21,369	Flinders	887	Petrie	152	Blaxland	59
Page	19,335	Pearce	755	Dunkley	148	Kooyong	59
Lyne	16,041	Berowra	751	Gellibrand	144	Brisbane	57
Dawson	14,630	Dickson	724	Lilley	144	Griffith	57
Wide Bay	14,227	Dobell	675	Bruce	142	Goldstein	56
Nicholls	14,116	Corangimite	640	Jagajaga	137	Warringah	51
Franklin	10,009	Bowman	536	Rankin	131	Watson	51
Bullwinkel	9,508	Cunningham	536	Aston	124	Reid	49
Mayo	9,135	Spence	532	Swan	124	Wills	47
Monash	8,255	Forde	418	Hindmarsh	122	Sydney	45
Bass	7,975	Fadden	387	Boothby	115	Barton	42
Wright	7,577	Hughes	380	Chifley	113	Melbourne	39
Cowper	7,271	Bonner	374	Werriwa	111	Macnamara	38
Hunter	7,253	Ryan	370	Moreton	109	Grayndler	34
Blair	6,472	Lindsay	325	Cowan	108	Wentworth	31
Forrest	6,454	Canberra	312	Bradfield	105		
Gilmore	6,322	Brand	309	Menzies	102		

APPENDIX 4 - the AEC's malfunctions resulted in excessive Informal votes

Probe Underway After Nearly Half the Votes at 1 Polling Booth Declared Invalid

Naziya Alvi Rahman is a Canberra-based journalist who covers political issues in Australia.

An unusually high number of informal votes cast at a polling booth in Missabotti, southwest of Coffs Harbour, has prompted an investigation by the Australian Electoral Commission (AEC). Of the 111 people who voted at the booth, 50 incorrectly completed their House of Representatives ballots, rendering nearly half the votes invalid.

Voters and local sources blame the issue on incorrect instructions allegedly given by AEC staff on election day … While acknowledging the concern, the AEC emphasised that the 50 informal votes would not change the final outcome in Cowper, which saw a winning margin of 5,397 votes.

"Any issues around formality are concerning," the spokesperson said. "The AEC takes ballot paper formality very seriously—our intention is always to maximise the number of voters who are able to participate in a federal election by casting a formal vote." …
"As we begin planning for the probable 2028 federal election, the AEC will seek to improve our education re voting instructions for polling place staff … will conduct a study of informal ballot papers … will help improve our voter education work for future federal elections."

Appendix 4.2

Probe into vote errors in hospitals

SMH 27 May 2025

Olivia Ireland, Shane Wright

Health Minister Mark Butler wants significant attention paid to discovering why the rate of informal votes has almost tripled in hospitals and aged care centres as it potentially affects the results of closely contested electorates.

Peak industry groups including the Australian Healthcare and Hospitals Association and National Seniors Australia are also calling for the Australian Electoral Commission to discover the cause of increased informal votes to prevent it from happening again.

The revelation that an unusually large number of voters in hospitals and aged care centres had their votes rejected as informal has led to calls for the commission to review voting patterns in aged care and hospital settings.

Butler said yesterday that his responsibility for the health sector included making sure some of Australia's most vulnerable enjoyed the right to vote.

"The outreach that the AEC has conducted for a long period of time into these facilities to ensure that residents are able to exercise their democratic right to vote is a critical part of our democracy," he said at a Canberra press conference.

"There's certainly a very significant increase in informality in some areas, including, frankly, I saw in my own electorate. I look forward to that being the subject of significant attention."

This masthead revealed yesterday that in two seats, Berowra in northern Sydney and Lyons in regional Tasmania, two teams collected more informal votes than formal ones. In Berowra, the informal rate among the 250 ballots collected by its special hospital team soared by 64.5 per cent since the 2022 election to almost 70 per cent.

The seat of Bradfield started a formal recount yesterday after Liberal Gisele Kapterian finished just eight votes ahead of independent Nicolette Boele after the first full count on Friday. The special hospital teams in the seat recorded much higher rates of informal voting than in 2022, and the total number of informal votes collected by the teams was up from 16 to 107.

Informal votes across the five special hospital teams used in Calare increased by between 8.5 per cent and 31.2 per cent on 2022 election levels. Of 808 votes cast in special hospital teams, more than 17 per cent were found to be informal compared to just 8 per cent across the electorate.

8
The voting margin in the seat of Bradfield

National Seniors Australia chief executive Chris Grice said there could be several reasons for a spike in informal votes.

"People are entering age care older, more frail, and many with cognitive decline. Older people, like others, may also feel disengaged with politics and this might lead to an informal response when they cast their vote," he said.

"If the informal vote is because of cognitive impairment in hospital, aged care or the community, the AEC should continue to ensure the process for opting out or being excused from the electoral role is clear, simple and not open to abuse."

Australian Healthcare and Hospitals Association chief executive Tony Farley said the AEC must investigate the cause of the problem and encourage officers to interview staff.

"As we see with those tight margins with those close seats, every vote counts," he said.

After every federal election, parliament will launch an inquiry into all aspects of conduct of the election.

Special Minister for State Don Farrell is set to ask for a parliamentary report on the 2025 election later in the year.

"We have a strong and robust democracy, and our elections are conducted by the independent AEC," a spokesperson said.

"We welcome the parliament's joint standing committee on electoral matters reviewing matters relating to the recent election in due course."

An AEC spokesperson also confirmed the commission would conduct a study of the informal ballots, adding it was unclear on the reason for the spike in informal votes through hospital teams.

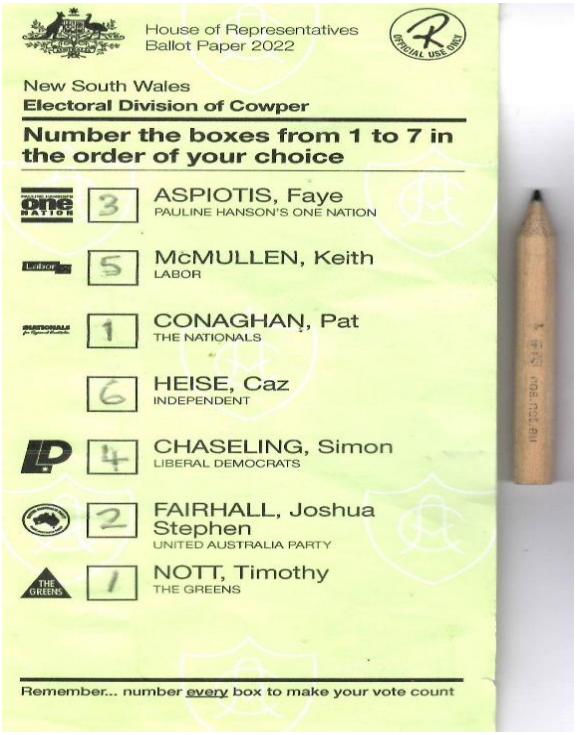
Other challenges posed by the AEC's special hospital teams have emerged since the first reports.

During the final week of the election campaign, a man was admitted to a major hospital in the NSW Central West that sits in the electorate of Calare.

The partner of the man, who did not want to be identified, was unable to vote when electoral commission staff visited as hospital personnel were unaware that voting was taking place.

When he contacted the electoral commission the following day, he was told it was too late to seek a postal vote.

On the Saturday of the election, the man was still in hospital with health issues which prevented him from travelling to a polling booth.

APPENDIX 5.1 - the MP for Cowper's How to Vote leaflet in the 2022 federal election

APPENDIX 5.2 - here is how I saw some ballot papers, where the pencil 7 seemed to have been altered to a 1, so as to make the ballot paper to become Informal due to having two 1s